OFFICE OF THE SECRETARY OF STATE

STATE OF OKLAHOMA

NOT FOR PROFIT
CERTIFICATE OF INCORPORATION

WHEREAS, *the Certificate of Incorporation of*

SILVERWOOD HOMEOWNERS' ASSOCIATION, INC.

has been filed in the office of the Secretary of State as provided by the laws of the State of Oklahoma.

NOW THEREFORE, *I, the undersigned, Secretary of State of the State of Oklahoma, by virtue of the powers vested in me by law, do hereby issue this certificate evidencing such filing.*

IN TESTIMONY WHEREOF, *I hereunto set my hand and cause to be affixed the Great Seal of the State of Oklahoma.*

GREAT SEAL OF THE STATE OF OKLAHOMA 1907

Filed in the City of Oklahoma City this 19TH
day of SEPTEMBER, 2001.

Mike Hunter
Secretary of State

By: Patti Baune

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CERTIFICATE OF INCORPORATION

FILED

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OKLAHOMA SECRETARY OF STATE

SILVERWOOD HOMEOWNERS' ASSOCIATION , INC.
(Not for Profit)

TO THE SECRETARY OF STATE OF THE STATE OF OKLAHOMA:

In compliance with the requirements of Title 18, Section 1000 et seq., of the Oklahoma Statues, the undersigned having this day voluntarily associated themselves together for the purpose of forming a corporation not for profit and do hereby certify:

ARTICLE I

NAME

The name of the corporation (herein after the "Association" or the "Corporation") is "SILVERWOOD HOMEOWNERS' ASSOCIATION, INC.", a not-for-profit corporation.

ARTICLE II

SERVICE AGENT AND ADDRESS

The name and address of the Registered Agent for the Corporation is:

John L. Tracy
2703 South 80th East Avenue
Tulsa, Oklahoma 74129

ARTICLE III

DURATION

The duration of the Corporation shall be perpetual.

RECEIVED

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OKLAHOMA SECRETARY OF STATE

ARTICLE IV

PURPOSE

This Corporation shall be a "Homeowners Association" within the meaning of Section 528 of the Internal Revenue Code of 1986, or the corresponding provision of any further United States Internal Revenue law (hereafter the "Code"), and is formed for purposes not involving pecuniary gain or profit to the members thereof, and shall have no capital stock. The Association shall not carry on any activities not permitted to be carried on by a corporation qualified as a Homeowners Association pursuant to Section 528 of the Code. The specific purpose for which the Association is formed are to provide for the enhancing and protecting of the value, desirability and attractiveness of the real and personal property with in that certain tract of land described as follows:

> All of Silverwood, a subdivision to the City of Bixby, Tulsa County, Oklahoma, according to the recorded plat thereof; ("Silverwood")

and to provide the health, safety and welfare of the owners of parcels within the above-described property, and for those purposes to:

(a) own, acquire, build, operate and maintain landscaping, walls, fences, entryways, signs, storm water detention facilities and common area facilities and structures of any and all kinds of the use and benefit of the members of the Association;

(b) exercise such powers pertaining to Silverwood, including architectural plan review, as may from time to time be vested in or granted to the Association;

(c) fix, levy, collect and enforce payment by any lawful means, all charges or assessments made for acquisition, construction, maintenance, and operation of common facilities, to pay all expenses in connection therewith, and all office and other expenses incident to the conduct of the business of the Association, including all licenses, taxes, or governmental charges levied or imposed against the property of the Association;

(d) acquire (by gift, purchase or otherwise), own, hold, improve, build upon, operate, maintain, convey, sell, lease, transfer, dedicate for public use or otherwise dispose of real or personal property in connection with the affairs of the Association;

(e) borrow money, and with assent of two-thirds (2/3) of the members, to mortgage, pledge, or hypothecate any or all of its real or personal property as security for money borrowed or debts incurred; and

(f) have and exercise any and all powers, rights and privileges which a corporation organized under the Oklahoma General Corporation Act of the State of Oklahoma by law may now or hereafter have or exercise.

ARTICLE V

NOT FOR PROFIT; NO CAPITAL STOCK

The Association is a not-for-profit corporation and, as such, does not afford pecuniary gain, incidentally or otherwise, to its members. The Association shall have no capital stock and shall have no authority to issue such stock.

ARTICLE VI

MEMBERSHIP IN ASSOCIATION

Every person or entity who is a record owner of a fee simple or undivided fee-simple interest in any "Lot" within Silverwood, as that term is defined in the Declaration, shall be automatically a member of the Association. The forgoing is not intended to include persons or entities who hold an interest merely as security for performance of an obligation. Membership shall be appurtenant to and may not be separated from ownership of any parcel with in Silverwood. Ownership of such interest shall be the sole qualification for membership.

ARTICLE VII

BOARD OF DIRECTORS

Until the first annual meeting of the members of the Association, which meeting shall take place no later than one (1) year from the date of incorporation, the affairs of the Association shall be governed by a Board of Directors composed of three (3) members. At the first annual meeting of the members of the Association and at each annual meeting thereafter, the Directors shall be elected for a term of one (1) year. The following individuals shall act as initial Directors until the election of the Board of Directors at the first annual meeting of the members of the Association:

NAME	ADDRESS
John L. Tracy	2703 South 80th East Avenue, Tulsa, Oklahoma 74129
David L. Tracy	2703 South 80th East Avenue, Tulsa, Oklahoma 74129
Del Davis	2703 South 80th East Avenue, Tulsa, Oklahoma 74129

ARTICLE VIII

NON LIABILITY OF DIRECTORS

To encourage participation of members or other persons as Directors of the Association, limitation of personal liability shall be established to the extent permitted by the General Corporation Act (18 O.S.A. §§866 and 867) as it now exists or may be later amended, and the limitations of liability shall be deemed to include the following:

(a) No Director shall have personal liability to the Association or its members for monetary damages for breach of fiduciary duty as a Director, provided the foregoing shall not limit liability:

(i) for any breach of Director's duty of loyalty to the Association;

(ii) for acts or omissions not in good faith or which involve intentional misconduct or knowing violation of law; or

(iii) for any transaction for which the Director derived an improper personal benefit.

(b) Exercise all of the powers and privileges and to perform all of the duties and obligations of the Association as set forth in the Declaration;

(i) any negligent or omission of an employee of the Association from:

(ii) any negligent act or omission of another Director.

ARTICLE IX

BYLAWS

The Board of Directors shall have the power to adopt, amend, or repeal bylaws; provided, however, nothing herein shall divest the membership of the residual power to adopt, amend or repeal bylaws.

ARTICLE X

AUTHORITY TO DEDICATE

The Association shall have the power to dedicate, sell, or transfer all or any part of its land or any easement which holds to any public agency, authority, or utility; provided, however, the dedication, sale, or transfer shall require the assent of fifty-one percent (51%) of the eligible votes.

ARTICLE XI

POWERS OF INCORPORATORS TO TERMINATE

The powers of the incorporators are to terminate upon the filing of the Certificate of Incorporation, at which time the interim Directors named in Article VII herein shall assume their duties for the management of the business and the conduct of the affairs of the Association until the first meeting of the members of the Association.

ARTICLE XII

AMENDMENTS

Any amendments of this Certificate of Incorporation shall require the accent of sixty percent (60%) of the votes of the entire membership entities to vote at the date of determination.

ARTICLE XIII

DISSOLUTION

The Association may be dissolved provided however, dissolution shall require the assent of seventy percent (70 %) of the eligible votes. Upon dissolution of the Association, the assets, both real and personal of the Association, shall be dedicated to an appropriate public agency to be devoted to purposes as nearly as practicable the same as those to which they were required to be devoted by the Association. In the event that dedication is refused acceptance, the assets shall be granted, conveyed and assigned to any non-profit corporation, association, trust or other organization to be devoted to purposes and uses that would most nearly reflect the purposes and uses to which they were required to be devoted by the Association.

ARTICLE XIV

INCORPORATORS

The name and mailing address for each of the incorporators are as follows:

NAME	ADDRESS
John L. Tracy	2703 South 80th East Avenue, Tulsa, Oklahoma 74129
David L. Tracy	2703 South 80th East Avenue, Tulsa, Oklahoma 74129
Del Davis	2703 South 80th East Avenue, Tulsa, Oklahoma 74129

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WE THE UNDERSIGNED INCORPORATORS, in accordance with the Oklahoma General Corporation Act and for the purposes stated herein, do hereby make, file and record this Certificate, and do hereby certify that the facts stated herein are true, and accordingly have set our hands this 18th day of September, 2001.

John L. Tracy

John L. Tracy

David L. Tracy

David L. Tracy

Del Davis

Del Davis